

Smt.Saroj Devi v. State of U.P. and 2 Others

Allahabad High Court · Division Bench · 12 September 2018 · Writ - C No. 30908 of 2018 · **Writ disposed of; petitioner relegated to Clause 6.5; no disconnection for 1 month**

HEADNOTE

A consumer who challenges an electricity bill of Rs.5461/- and seeks a writ quashing the bill or restraining disconnection is relegated to Clause 6.5 of the U.P. Electricity Supply Code, 2005. If the consumer applies under that clause after completing the formalities within 10 days, the Executive Engineer is to consider and decide it in accordance with law. For 1 month the licensee shall not disconnect. The Court does not examine the bill.

FACTUAL SUMMARY

Smt.Saroj Devi challenged an electricity bill of Rs.5461/-. The Court treated the grievance as one against an electricity bill and pointed the petitioner to Clause 6.5 before the Executive Engineer.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Billing objection — relegation to Clause 6.5

HOLDING

A writ seeking quashing of an electricity bill and/or a restraint on disconnection is disposed of without examining the bill. The consumer has a remedy before the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005. If an application is made after completing the formalities within 10 days, it shall be considered and decided in accordance with law. For 1 month the respondent officers shall not disconnect.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE DISPUTED ELECTRICITY BILL

Left to the Clause 6.5 authority.